



SUPERIOR COURT OF SAN MATEO COUNTY

Probate - Probate

Courtroom 2C

Hearing Date: 06/23/2026 - 09:00 AM

06/11/2026

2:10 PM

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Judge: Novak, Lisa A.

Clerk: Ortega, Alexandrina

Reporter: Conde, Wendy

Tentative Ruling:

NO APPEARANCE

All matters set on June 23, 2026 at 9:00 am were CONTINUED to October 19, 2026 at 9:00 am via the Court's 6/16/2026 Ex Parte Order.

25-PRO-01360	IN THE MATTER OF DUTT FAMILY TRUST	VERIFIED PETITION FOR INVALIDATION OF TRUST ON GROUNDS OF LACK OF CAPACITY AND UNDUE INFLUENCE, ACCOUNTING, REMOVAL OF TRUSTEE, SURCHARGE, RETURN OF TRUST ASSETS, AND DAMAGES FOR FINANCIAL ELDER ABUSE. - Continued on 03/06/2026
Line 7, 8	Petitioner: Aira, Sangeeta Dutt (BARGER, KEVIN THOMAS WOODS, MICHAEL F.) Petitioner: Dutt, Anita (BARGER, KEVIN THOMAS WOODS, MICHAEL F.) Petitioner: Fowler, Shareena D. (BARGER, KEVIN THOMAS WOODS, MICHAEL F.) Decedent: DUTT, BISUN Decedent: Dutt, Shakuntala	Order to Show Cause Hearing Petition Hearing



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Tentative Ruling:

APPEARANCE ORDERED (Zoom allowed)

Respondent Pravina Dutt has failed to comply with the Court's previous order that she file an accounting. Moreover, she has failed to file any response to the petition. As such, the remainder of the unopposed petition is GRANTED absent cogent objection.

The Court orders the Disputed Documents be set aside as invalid on the basis of undue influence; fraud; and duress. The Court finds that the Disputed Documents and/or the donative transfers made therein for the benefit of Respondent are void as a result of fraud and/or undue influence, pursuant to Probate Code section 21380, et seq. Because Respondent was unsuccessful in rebutting the presumption of fraud or undue influence pursuant to Probate Code section 21380, the Court awards Petitioners all costs incurred in bringing this action, including reasonable attorneys' fees. The Court finds that Respondent shall be deemed to have predeceased Shakuntala pursuant to Probate Code sections 259 and 21386. The Court immediately imposes a constructive trust over the remaining property, including Trust and/or other assets wrong-fully acquired by Respondent, as well as any and all income and interest derived therefrom, and all proceeds of any sale of any such real or personal property wrongfully acquired by Respondent. Pursuant to Probate Code Sections 850 and 856 Respondent shall return to the trust and/or convey title to each and every Trust asset wrongfully acquired by Respondent, whether as trustee, beneficiary, or as an individual, and/or currently held by any third party(ies), as well as any and all non-Trust assets wrongfully acquired by Respondent in any such capacity that had previously been owned or possessed by Shakuntala prior to the date Respondent executed the Disputed Documents. The Court finds that Respondent committed financial elder abuse against Shakuntala, pursuant to Welfare and Institutions Code Section 15610. A such, the Court orders that Petitioners be awarded enhanced remedies pursuant to Welfare and Institutions Code Section 15657, including reasonable attorneys' fees and costs. The Court orders that Respondent be precluded from using trust assets to defend against her wrongful actions. Respondent is immediately removed as Trustee of the Trust, and Anita Dutt is appointed as successor Trustee. The Court orders that Respondent return any trustee compensation taken by Respondent for either ordinary or extraordinary services rendered in connection with actions as Trustee. The Court orders that Petitioners be awarded twice the value of the property recovered in this action pursuant to Probate Code section 859 and Welfare and Institutions Code section 15657.5. The Court awards Petitioners all reasonable costs, including attorneys' fees, pursuant to Probate Code Sections 11003(b) and 17211(b). The Court declines to order exemplary or punitive damages as there higher burden of clear and convincing evidence is not met. Petitioner to submit a formal order consistent with this ruling.

Petitioner is to appear to set a prove-up hearing on damages on the Court's 2:00 pm calendar.



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25-PRO-01633	Conservatorship of Brenda J. Kelley	
Line 9	Proposed Conservatee: Kelley, Brenda J. (EISENBERG, MARTA C.) Petitioner: McGavran, Christine B. (BALAT, MEERA N. SCHRAMMEL, ISABELLA R) Proposed Conservator: McGavran, Christine B. Temporary Conservatee: Kelley, Brenda J. (EISENBERG, MARTA C.) Temporary Conservator: McGavran, Christine B.	Appointment of Conservator for Estate

Tentative Ruling:

APPEARANCE ORDERED (Zoom allowed) [Order Provided]

The Petition is GRANTED and the Court makes the following orders:

1. Christine B. McGavran is appointed conservator of the estate of Brenda J. Kelley, and a conservatorship is the least restrictive alternative to protect the conservatee.
2. The conservator is granted the authority to obtain a TrueLink card for the conservatee and to fund the TrueLink card with up to \$500.00 per month in the conservator's discretion for the conservatee's general expenditures and incidentals.
3. Bond be fixed at \$801,000.00.
4. A nonappearance hearing on the conservator's filing of the following documents is set for November 18, 2026 at 9:00 am:
 - a. Inventory and Appraisal (GC-040) within ninety (90) days of appointment;
 - b. Notice of Filing of Inventory & Appraisal and How to Object to the Inventory or the Appraised Value of Property (GC-042) within ninety (90) days of appointment;
 - c. Confidential Conservatorship Care Plan Parts 1&2 (forms GC-355 & GC-356) within one hundred twenty (120) days of appointment.
5. Pursuant to Probate Code §1830, the conservator shall file a proof of mailing of the Notice of Conservatee's Rights within thirty (30) days of appointment.
6. The conservator attend conservator education classes within six (6) months of being appointed conservator and a Proof of Completion shall be filed with the Court.
7. The Court orders that this conservatorship, absent a judicial finding of hardship, is subject to present and future assessments for the cost of the investigation, pursuant to Probate Code §1851.5. The Court orders payment of \$425.00, for the cost of the investigation and report for temporary conservatorship, and \$850.00, for the cost of the Court's investigation and report, from the conservatorship estate to the Superior Court of San Mateo County within ninety (90) days.
8. The conservatorship shall be reviewed in one (1) year.
9. Bond remains set at \$801,000.00.
10. The Court grants independent counsel's request for fees in the amount of \$1,805.00 and reimbursement of costs advanced in the amount of \$31.01, and independent counsel's request for discharge.